Chinese Exclusion Act

47th Congress · approved May 6, 1882

Source: Chinese Exclusion Act (May 6, 1882), text via the U.S. National Archives, Milestone Documents. Public domain.

The Chinese Exclusion Act was the first U.S. federal law to bar an entire ethnic group from immigration. Chinese laborers had been recruited heavily in the 1860s — especially for the Central Pacific Railroad — but anti-Chinese agitation in California, intensified by the 1873–79 depression, pushed Congress to act. The 1882 act was renewed and expanded for decades, finally being repealed in 1943 during WWII (when China was a U.S. ally).

Connect: The nativism of the 1880s echoes the Know-Nothing movement (Class 14). How is anti-Chinese sentiment in 1882 similar to anti-Irish sentiment in 1854 — and how is it different?

Key Passages

Preamble and Section 1 — the ban

> the coming of Chinese laborers to this country endangers the good order of certain localities within the territory thereof … the coming of Chinese laborers to the United States be, and the same is hereby, suspended; and during such suspension it shall not be lawful for any Chinese laborer to come, or having so come after the expiration of said ninety days to remain within the United States.

Section 12 — removal

> any Chinese person found unlawfully within the United States shall be caused to be removed therefrom to the country from whence he came, by direction of the President of the United States, and at the cost of the United States

Sections 14–15 — citizenship and ‘laborers’

> hereafter no State court or court of the United States shall admit Chinese to citizenship; and all laws in conflict with this act are hereby repealed. SEC.15. That the words “Chinese laborers”, wherever used in this act shall be construed to mean both skilled and unskilled laborers and Chinese employed in mining.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Chinese immigration had grown after the Gold Rush and railroad building; Western economic hard times led to anti-Chinese violence and nativism.
Intended Audience *Who was the source written for?*	Immigration officials, Chinese laborers and immigrants, and Western voters and workers who demanded restriction.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Congress, influenced by Western labor and nativist pressure (such as Denis Kearney's Workingmen's Party); Chinese immigrants had no say.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. DBQ Evidence (1 pt): Use the Chinese Exclusion Act together with 2+ other Gilded Age documents to argue for a thesis about race and labor in the period.
2. Why ‘Chinese laborers’ specifically and not other immigrant groups?
3. Connect this 1882 law to the 1924 Immigration (Johnson-Reed) Act.

The Chinese Exclusion Act

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> The first federal law to bar an entire nationality, the act suspended Chinese labor immigration for ten years and forbade Chinese immigrants from becoming citizens — a landmark of Gilded Age nativism that shaped U.S. immigration policy for decades.

Preamble and Section 1 - the ban

An Act to execute certain treaty stipulations relating to Chinese. Whereas in the opinion of the Government of the United States the coming of Chinese laborers to this country endangers the good order of certain localities within the territory thereof: Therefore, Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That from and after the expiration of ninety days next after the passage of this act, and until the expiration of ten years next after the passage of this act, the coming of Chinese laborers to the United States be, and the same is hereby, suspended; and during such suspension it shall not be lawful for any Chinese laborer to come, or having so come after the expiration of said ninety days to remain within the United States.

Section 2 - penalties on ship masters

SEC. 2. That the master of any vessel who shall knowingly bring within the United States on such vessel, and land or permit to be landed, any Chinese laborer, from any foreign port or place, shall be deemed guilty of a misdemeanor, and on conviction thereof shall be punished by a fine of not more than five hundred dollars for each and every such Chinese laborer so brought, and maybe also imprisoned for a term not exceeding one year.

[. . .]

Section 6 - certificates for non-laborers

SEC. 6. That in order to the faithful execution of articles one and two of the treaty in this act before mentioned, every Chinese person other than a laborer who may be entitled by said treaty and this act to come within the United States, and who shall be about to come to the United States, shall be identified as so entitled by the Chinese Government in each case, such identity to be evidenced by a certificate issued under the authority of said government, which certificate shall be in the English language or (if not in the English language) accompanied by a translation into English, stating such right to come, and which certificate shall state the name, title or official rank, if any, the age, height, and all physical peculiarities, former and present occupation or profession, and place of residence in China of the person to whom the certificate is issued and that such person is entitled, conformably to the treaty in this act mentioned to come within the United States. Such certificate shall be prima-facie evidence of the fact set forth therein, and shall be produced to the collector of customs, or his deputy, of the port in the district in the United States at which the person named therein shall arrive.

[. . .]

Section 12 - entry by land and removal

SEC. 12. That no Chinese person shall be permitted to enter the United States by land without producing to the proper officer of customs the certificate in this act required of Chinese persons seeking to land from a vessel. And any Chinese person found unlawfully within the United States shall be caused to be removed therefrom to the country from whence he came, by direction of the President of the United States, and at the cost of the United States, after being brought before some justice, judge, or commissioner of a court of the United States and found to be one not lawfully entitled to be or remain in the United States.

Sections 13-15 - exemptions, naturalization, definitions

SEC.13. That this act shall not apply to diplomatic and other officers of the Chinese Government traveling upon the business of that government, whose credentials shall be taken as equivalent to the certificate in this act mentioned, and shall exempt them and their body and house- hold servants from the provisions of this act as to other Chinese persons.

SEC. 14. That hereafter no State court or court of the United States shall admit Chinese to citizenship; and all laws in conflict with this act are hereby repealed. SEC.15. That the words “Chinese laborers”, wherever used in this act shall be construed to mean both skilled and unskilled laborers and Chinese employed in mining. Approved, May 6, 1882.

Words to know

treaty stipulations — the specific terms the U.S. had agreed to in its treaty with China

suspended — stopped for a set period (here, ten years), not permanently ended

misdemeanor — a lesser crime, punished here by a fine or up to a year in prison

prima-facie evidence — proof accepted as true unless someone disproves it

collector of customs — the port official who inspected arriving people and goods

credentials — official papers proving a diplomat’s identity and government business

construed — interpreted; understood to mean